

M/s Raghu Prime Metal Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 September 2016 · Writ-C No. 35012 of 2013 · **Writ dismissed as infructuous; additional-security challenge undecided.**

HEADNOTE

A 2013 Division Bench connected this writ, challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, with similar pending petitions and restrained the licensee from demanding additional security, following the interim in W.P. No. 30582 of 2009. On 12 September 2016 another Division Bench dismissed the petition as infructuous on the petitioner's statement, without deciding the para 4.20 demand.

FACTUAL SUMMARY

M/s Raghu Prime Metal Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 2 July 2013 the Court connected the writ with W.P. No. 30582 of 2009 (M/s Vehina Steels & Alloys) and similar matters, gave three weeks for a counter affidavit, and restrained demand of additional security until further orders, following the interim in the connected petition. In 2016 counsel stated the writ had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement, without a decision on the demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE COULD DEMAND ADDITIONAL SECURITY UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petition was connected with similar challenges and given an interim restraint, then dismissed as infructuous without deciding the demand. ¶ 1